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## Solicitation/Contract Form Continuation

Instrument Name: MACHINE SPINDLE GROS-ITE 6P6-304-1C01

Product Service Code : 3413

1. The Army Contracting Command - Rock Island (ACC-RI) hereby issues the solicitation W519TC26QA132, for the procurement of Machine Spindles at Rock Island Arsenal, Joint Manufacturing and Technology Center (RIA-JMTC). This solicitation is issued in accordance with Federal Regulation (FAR) Part 12, Acquisition of Commercial Products and Services.

2. Quotes must be submitted via email to the Contract Specialist listed below in the Points of Contact paragraph and received prior to the closing date and time to be considered for award. The offeror is responsible for assuring the quote is received by the Government on time, prior to the closing date and time, to be considered. It is the government's intent to award without discussions (except for clarifications as described by FAR 15.306(a)). Therefore, the Contractor's quote should be complete and contain the contractor's best price and delivery terms. A complete quote submission includes (but not limited to) the contractor's best term (price and delivery and all required fill-ins under this RFQ). IAW FAR clause 52.212-2, included in this RFQ, the Government reserves the right to conduct discussions if determined necessary by the Contracting Officer.

Quotes shall be prepared and authorized by a person(s) regularly employed by the contractor. The quote shall state the name of each person(s) contributing to the authorship of the quote, the person(s) position/title, phone number, and an email address for the person who should be contacted if an award is to be made. The quote should be prepared in a clear, legible, practical manner. In addition, the quote shall be written in English and should be specific and complete.

Pricing should be IAW the information on the CLIN and any attachments to this solicitation and should be documented directly on the SF1449 form, including a unit price on each CLIN, a total CLIN amount, and a grand total for the entire solicitation (including shipping FOB destination to Rock Island, IL to be paid by the contractor), all clauses that require fill ins should be completed, and the authorized preparer shall sign and date prior to submission. The solicitation should be emailed to the POCs listed below.

### 3. Use of Artificial Intelligence (AI) tools in Proposal Evaluation

a. Use of AI tools in Support of Evaluations: The Government will employ AI as a tool to assist in the analysis and review of offeror proposals. AI tools may be used to support tasks such as summarizing proposal content, identifying compliance with request for task order proposal /solicitation requirements, and highlighting areas of potential strength, weakness, or risk.

b. Maintaining Inherently Governmental Functions: Notwithstanding the use of AI tools to support the evaluation process, all final evaluation judgments, including the assignment of assessment of adjectival ratings, best value determination, and source selection decisions, will be made exclusively by duly appointed Government personnel. The Government retains the sole responsibility for all inherently governmental functions and will not delegate decision making authority to any AI tool.

c. Offeror Confidentiality and Data Protection: The AI tools utilized by the Government will be employed in a manner consistent with the applicable regulations that govern the protection of proprietary and source selection sensitive information. The AI tool will be an output-only system. Any generated report data is not saved.

4. The Government intends to award one firm fixed price purchase order (without discussions, except clarifications as described in FAR 15.306(a)) to the Offeror determined to be responsible (in accordance with (IAW) the Federal Acquisition Regulation (FAR) subpart 9.1) whose quote conforms with the RFQ requirements and is determined to be the lowest total evaluated (fair and reasonable) priced quote.

5. Delivery for this item is specified on the CLIN(s), however early and incremental delivery is authorized and encouraged with no additional cost to the Government. All quotes shall be quoted as FOB Destination Rock Island, IL, see FAR 52.247-34, therefore, all shipping charges should be included in the quote.

On time delivery is critical. Therefore, contractor must adhere to the delivery requirements indicated in the resulting award. Failure to comply with the contractual delivery schedule after award may result in termination of the award or require consideration if the Government elects to extend your delivery schedule. The Government is not obligated to extend your delivery if you encounter delays. The non-availability of raw materials, subcontractor issues, scheduling conflicts, etc., are not considered acceptable delays/excuses for the failing to meet the contractual delivery schedule. If there is going to be a delay in delivery, the contractor is required to notify the Contracting Officer designated in the award at least 10 days prior to being late. Such notification shall include the contractor's reasons for delay, proposed revised schedule, and the contractor's offered consideration for the delay should the Government elect to extend.

It is the responsibility of the contractor to ensure that they provide quality products that conform to the award terms and conditions as well as meet the required delivery schedule. Delivery of non-conforming products results in delivery/acceptance delays and ultimately increased costs to the Government.

All deliveries shall be shipped to the following address:

ROCK ISLAND ARSENAL

JOINT MANUFACTURING AND TECHNOLOGY CENTER (RIA-JMTC)

TRANSPORTATION OFFICER, W52H1C

EAST END, RECG DOOR 16A

ROCK ISLAND, IL 61299-5000

**\*\*Contractor shall package all shipments to RIA-JMTC IAW standard commercial guidelines.  
NOTE RECEIVING HOURS OF OPERATION Monday-Friday, 6:30am to 2:00pm Central Time.**

Deliveries before or after the above stated hours will be turned away. Appointments are not necessary. For directions call: (309)782-8539 (Automated).

6. **WARRANTY:** A one year parts and labor warranty is required for all CLINs. Warranties shall be provided for the item and all required tooling. All warranties will begin upon final acceptance by the Government. Contractor shall provide the product warranty information to the Contracting Officer upon award.

7. **PAYMENT:** Payment will be via Defense Finance and Accounting System (DFAS) via the Wide Area Workflow (WAWF) System. Only electronic invoices submitted through WAWF will be accepted. All other formats will be rejected. See DFARS 252.232-7003 and 252.232-7006 for additional invoicing guidance.

8. Offeror is cautioned to ensure their proposal is fully complete, including all fill-ins and blanks in the solicitation. Contractor agrees by submission that their proposal and the prices contained therein will be valid for 90 days after date of the quote submission.

9. Point of Contacts for this RFQ are as follows:

Contract Specialist: Lynn Baker, Email: [lynn.d.baker8.civ@army.mil](mailto:lynn.d.baker8.civ@army.mil)

Contracting Officer: Sophia Muckenfuss, Email: [Sophia.I.muckenfuss.civ@army.mil](mailto:Sophia.I.muckenfuss.civ@army.mil)

10. INSTALLATION ACCESS INFO

Rock Island Arsenal (RIA) Visitor Access Passes are issued to individuals, not companies or groups. All visitors, to include transportation and freight services, official and unofficial, are highly suggested to pre-register at least three (3) business days prior to their visit. Pre-registration of visitors allows for the national Crime Information Center NCIC-III background check to be conducted prior to the individual arriving at RIA, reducing their wait time upon arrival.

It is the responsibility of the prime contractor to ensure that this information is passed along to any subcontractor or transportation provider used during the performance of this purchase order. DRIVERS WHO DO NOT MEET THE INSTALLATION ACCESS REQUIREMENTS WILL NOT BE ALLOWED ON THE INSTALLATION AND WILL BE TURNED AWAY.

The Visitor Access Form, instructions, and "How Do I Get On Post?" flowchart can be found at <https://home.army.mil/ria/about/visitory-information>, click on Pass Request Information (missile right), to Visitor Access Form.

All visitors must process through the Moline Visitor Center Gate (I-74) off of River Drive in Moline, IL. Visitors (to include transportation and freight providers) will be required proper identification to access RIA. POC for this Policy is RIA Visitor Center, email [usarmy.ria.imcom.mbx.usag-access-request@army.mil](mailto:usarmy.ria.imcom.mbx.usag-access-request@army.mil). Their phone number is (309)782-1337.

#### RECEIVING HOURS OF OPERATIONS:

Monday-Friday, 6:30am to 2:00pm CST - Excluding Holidays

Deliveries before or after the above stated hours will be turned away.

Appointments are not necessary.

\*\*\* END OF NARRATIVE \*\*\*

## Continuation of Supplies or Services and Prices/Costs

### Additional Information/Notes

| Item | Supplies/Service                                                                                                                                                                                                                                                                                                                                                                                       | Quantity | Unit | Unit Price | Amount |
|------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|------|------------|--------|
| 0001 | <p>MACHINE SPINDLE GROS-ITE Model:<br/>6P6-304-1C01 SPINDLE FEATURES:<br/>SPINDLE TYPE: MOTORIZED, DEEP<br/>HOLE GRINDING SPINDLES RPM: 5,500<br/>MAX FOR INTERNAL USE ONLY:<br/>EH26MRI878EHM51<br/>CLIN only - Requisition Document Number<br/>(MILSTRIP, DLMS, FEDSTRIP):<br/>W52H1B610700JL<br/>Product Service Code: 3413<br/>Bill to Party: W52H1B<br/>Pricing Arrangement: Firm Fixed Price</p> | 1        | Each |            |        |

## Continuation of Description

### Requirements

MACHINE SPINDLE GROS-ITE 6P6#304#1C01

Continuation of Inspection and Acceptance

Overall Contract Inspection/Acceptance Locations

|      |                                                                                                                                                                                                                                                                                                                    |
|------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 0001 | <p>Inspection and Acceptance Location</p> <p>Both<br/>Destination<br/>Instructions: IAW SOLICIATION DETAILS.</p> <p>DoDAAC: W52H1B<br/>CountryCode: USA</p> <p>W0K8 RIA INSTL STK REC ACCT<br/>BLDG 299 GILLESPIE AV AND BECK LANE, ROCK ISLAND IL 61299-5000<br/>ROCK ISLAND, IL 61299-5000<br/>UNITED STATES</p> |
|------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|



## Continuation of Deliveries or Performance

|      |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
|------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 0001 | <p><b>Delivery Schedule</b><br/>Delivery On Or Before<br/>Delivery Date 14 Aug 2026<br/><b>Quantity</b> 1 Each</p> <p><b>Address and POC</b><br/>Ship To<br/>DoDAAC: W52H1B<br/>CountryCode: USA<br/>W0K8 RIA INSTL STK REC ACCT<br/>BLDG 299 GILLESPIE AV AND BECK LANE, ROCK ISLAND IL 61299-5000 ROCK<br/>ISLAND, IL 61299-5000 UNITED STATES</p> <p><b>Special Handling/Notes</b><br/>FoB Details</p> <p>Party to Pay Transportation Cost: Contractor</p> <p>Point Type: Destination</p> |
|------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|

## Contract Clauses

### FAR Clauses Incorporated by Reference

| Number    | Title                                                                                                                                                                  | Effective Date | Alternate Deviation | Variation Effective Date |
|-----------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------|---------------------|--------------------------|
| 52.203-19 | Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.                                                                                    | 2017-01        |                     |                          |
| 52.204-13 | System for Award Management-Maintenance. (Deviation 2026-O0038)                                                                                                        | 2026-02        |                     |                          |
| 52.209-6  | Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Deviation 2026-O0038) | 2026-02        |                     |                          |
| 52.212-4  | Terms and Conditions-Commercial Products and Commercial Services. (Deviation 2026-O0038)                                                                               | 2026-02        |                     |                          |
| 52.219-6  | Notice of Total Small Business Set-Aside. (Deviation 2026-O0038)                                                                                                       | 2026-02        |                     |                          |
| 52.222-19 | Child Labor-Cooperation with Authorities and Remedies. (Deviation 2026-O0038)                                                                                          | 2026-03        |                     |                          |
| 52.222-36 | Equal Opportunity for Workers with Disabilities. (Deviation 2026-O0038)                                                                                                | 2026-02        |                     |                          |

|           |                                                                                                |         |
|-----------|------------------------------------------------------------------------------------------------|---------|
| 52.222-40 | Notification of Employee Rights Under the National Labor Relations Act. (Deviation 2026-O0038) | 2026-02 |
| 52.222-50 | Combating Trafficking in Persons. (Deviation 2026-O0038)                                       | 2026-02 |
| 52.225-3  | Buy American-Free Trade Agreements-Israeli Trade Act. (Deviation 2026-O0038)                   | 2026-02 |
| 52.226-8  | Encouraging Contractor Policies to Ban Text Messaging While Driving.                           | 2024-05 |
| 52.229-12 | Tax on Certain Foreign Procurements.                                                           | 2021-02 |
| 52.232-33 | Payment by Electronic Funds Transfer-System for Award Management.                              | 2018-10 |
| 52.232-40 | Providing Accelerated Payments to Small Business Subcontractors.                               | 2023-03 |
| 52.233-3  | Protest after Award. (Deviation 2026-O0038)                                                    | 2026-02 |
| 52.233-4  | Applicable Law for Breach of Contract Claim. (Deviation 2026-O0038)                            | 2026-02 |

#### DFARS Clauses Incorporated by Reference

| Number | Title | Effective | Alternate | Variation |
|--------|-------|-----------|-----------|-----------|
|--------|-------|-----------|-----------|-----------|

|              |                                                                                             | <b>Date</b> | <b>Deviation</b> | <b>Effective<br/>Date</b> |
|--------------|---------------------------------------------------------------------------------------------|-------------|------------------|---------------------------|
| 252.203-7000 | Requirements Relating to Compensation of Former DoD Officials.                              | 2011-09     |                  |                           |
| 252.203-7002 | Requirement to Inform Employees of Whistleblower Rights.                                    | 2022-12     |                  |                           |
| 252.204-7004 | Antiterrorism Awareness Training for Contractors.                                           | 2023-01     |                  |                           |
| 252.204-7012 | Safeguarding Covered Defense Information and Cyber Incident Reporting.                      | 2024-05     |                  |                           |
| 252.204-7018 | Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services. | 2023-01     |                  |                           |
| 252.223-7008 | Prohibition of Hexavalent Chromium.                                                         | 2023-01     |                  |                           |
| 252.225-7001 | Buy American and Balance of Payments Program.                                               | 2024-02     |                  |                           |
| 252.225-7056 | Prohibition Regarding Business Operations with the Maduro Regime.                           | 2023-01     |                  |                           |
| 252.225-7060 | Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.             | 2023-06     |                  |                           |
| 252.232-7003 | Electronic Submission of Payment Requests and Receiving Reports.                            | 2018-12     |                  |                           |

|              |                                                              |         |
|--------------|--------------------------------------------------------------|---------|
| 252.232-7010 | Levies on Contract Payments.                                 | 2006-12 |
| 252.244-7000 | Subcontracts for Commercial Products or Commercial Services. | 2023-11 |
| 252.247-7023 | Transportation of Supplies by Sea.                           | 2024-10 |

## FAR Clauses Incorporated by Full Text

| Number    | Title                                                                        | Effective Date | Alternate Deviation | Variation Effective Date |
|-----------|------------------------------------------------------------------------------|----------------|---------------------|--------------------------|
| 52.219-28 | Postaward Small Business Program Rerepresentation.<br>(Deviation 2026-O0038) | 2026-02        |                     |                          |

Postaward Small Business Program Rerepresentation (Feb 2026) (Deviation 2026-O0038)

(a) *Definitions.* As used in this clause-

*Long-term contract* means a contract of more than five years in duration, including options. However, the term does not include contracts that exceed five years in duration because the period of performance has been extended for a cumulative period not to exceed six months under the clause at 52.217-8, Option to Extend Services, or other appropriate authority.

*Small business concern-*

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (c) of this clause.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

(b) If the Contractor represented that it was a small business concern, a small disadvantaged business concern, or a joint venture that was any of the small business concerns identified in 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (e) of this clause or, if applicable, paragraph (g) of this clause, upon occurrence of any of the following:

(1) Within 30 days after execution of a novation agreement or within 30 days after modification of the contract to include this clause, if the novation agreement was executed prior to inclusion of this clause in the contract.

(2) Within 30 days after a merger or acquisition that does not require a novation or within 30 days after modification of the contract to include this clause, if the merger or acquisition occurred prior to inclusion of this clause in the contract.

(3) For long-term contracts-

(i) Within 60 to 120 days prior to the end of the fifth year of the contract; and

(ii) Within 60 to 120 days prior to the date specified in the contract for exercising any option thereafter.

(c) The Contractor shall rerepresent its size status in accordance with the size standard in effect at the time of this rerepresentation that corresponds to the North American Industry Classification System (NAICS) code(s) assigned to this contract. The small business size standard corresponding to this NAICS code(s) can be found at <https://www.sba.gov/document/support-table-size-standards>.

(d) The small business size standard for a Contractor providing an end item that it does not manufacture, process, or produce itself, for a contract other than a construction or service contract, is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition-

(1) Was set aside for small business and has a value above the simplified acquisition threshold;

(2) Used the HUBZone price evaluation preference regardless of dollar value, unless the Contractor waived the price evaluation preference; or

(3) Was an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(e) Except as provided in paragraph (g) of this clause, the Contractor shall make the representation(s) required by paragraph (b) of this clause by validating or updating all its representations in the Representations and Certifications section of the System for Award Management (SAM) and its other data in SAM, as necessary, to ensure that they reflect the Contractor's current status. The Contractor shall notify the contracting officer in writing within

the timeframes specified in paragraph (b) of this clause, that the data have been validated or updated, and provide the date of the validation or update.

(f) If the Contractor represented that it was other than a small business concern prior to award of this contract, the Contractor may, but is not required to, take the actions required by paragraphs (e) or (g) of this clause.

(g) If the Contractor does not have representations and certifications in SAM, or does not have a representation in SAM for the NAICS code applicable to this contract, the Contractor is required to complete the following rerepresentation and submit it to the contracting office, along with the contract number and the date on which the rerepresentation was completed:

(1) The Contractor represents that it is, is not a small business concern under \_\_\_\_ NAICS Code assigned to \_\_\_\_ contract number.

(2) *[Complete only if the Contractor represented itself as a small business concern in paragraph (g)(1) of this clause.]* The Contractor represents that it is, is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.

(3) *Women-owned small business (WOSB) joint venture eligible under the WOSB Program.* The Contractor represents that it is, is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [\_\_\_\_ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: \_\_\_\_.]

(4) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The Contractor represents that it is, is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [\_\_\_\_ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: \_\_\_\_ .]

(5) *Service-disabled veteran-owned small business (SDVOSB) joint venture eligible under the SDVOSB Program.* The Contractor represents that it is, is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [\_\_\_\_ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: \_\_\_\_.]

(6) *HUBZone joint venture eligible under the HUBZone Program.* *[ Complete only if the offeror is a HUBZone small business concern. ]* The offeror represents, as part of its offer, that It is, is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [\_\_\_\_ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: .] Each HUBZone small business concern participating in the HUBZone joint venture must be certified as a HUBZone concern. [\_\_\_\_ Contractor to sign and date and insert authorized signer's name and title.]

(End of clause)

## DFARS Clauses Incorporated by Full Text

| Number       | Title                                    | Effective Date | Alternate Deviation | Variation Effective Date |
|--------------|------------------------------------------|----------------|---------------------|--------------------------|
| 252.232-7006 | Wide Area WorkFlow Payment Instructions. | 2023-01        |                     |                          |

### WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>



(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

INVOICE 2IN1. DO NOT SELECT FAST PAY AS THIS OPTION AS IT DELAYS ACCEPTANCE AND PAYMENT.

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

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*(Contracting Officer: Insert either "Invoice 2in1" or the applicable invoice and receiving report document type(s) for fixed price line items for services.)*

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2) ) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

*[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]*

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table\*

| <i>Field Name in WAWF</i> | <i>Data to be entered in WAWF</i> |
|---------------------------|-----------------------------------|
| Pay Official DoDAAC       | HQ0303                            |
| Issue By DoDAAC           | W519TC                            |
| Admin DoDAAC              | W519TC                            |
| Inspect By DoDAAC         | W52H1B                            |
| Ship To Code              | W52H1B                            |
| Ship From Code            | W52H1B                            |
| Mark For Code             |                                   |
| Service Approver (DoDAAC) | _____                             |
| Service Acceptor (DoDAAC) | _____                             |
| Accept at Other DoDAAC    | _____                             |

|                     |       |
|---------------------|-------|
| LPO DoDAAC          | _____ |
| DCAA Auditor DoDAAC | _____ |
| Other DoDAAC(s)     | _____ |

*(\*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert "See Schedule" or "Not applicable.")*

*(\*\*Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)*

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

Contract Specialist, Lynn Baker, lynn.d.baker8.civ@army.mil

Contracting Officer, Sophia Muckenfuss, sophia.l.muckenfuss.civ@army.mil

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

## Addendum to Contract Clauses

### FAR Clauses Incorporated by Reference

| Number    | Title                                                                                  | Effective Date | Alternate Deviation | Variation Effective Date |
|-----------|----------------------------------------------------------------------------------------|----------------|---------------------|--------------------------|
| 52.204-19 | Incorporation by Reference of Representations and Certifications.                      | 2014-12        |                     |                          |
| 52.209-10 | Prohibition on Contracting With Inverted Domestic Corporations. (Deviation 2026-O0038) | 2026-02        |                     |                          |
| 52.222-3  | Convict Labor. (Deviation 2026-O0038)                                                  | 2026-02        |                     |                          |
| 52.222-90 | Addressing DEI Discrimination by Federal Contractors. (Deviation 2026-O0038)           | 2026-04        |                     |                          |
| 52.223-23 | Sustainable Products. (Deviation 2026-O0038)                                           | 2026-02        |                     |                          |
| 52.232-39 | Unenforceability of Unauthorized Obligations.                                          | 2013-06        |                     |                          |
| 52.240-91 | Security Prohibitions and Exclusions. (Deviation 2026-O0038)                           | 2026-02        |                     |                          |
| 52.243-1  | Changes-Fixed-Price. (Deviation 2026-O0038)                                            | 2026-02        |                     |                          |
| 52.244-6  | Subcontracts for Commercial Products and Commercial Services. (Deviation 2026-O0038)   | 2026-04        |                     |                          |

|           |                                     |         |
|-----------|-------------------------------------|---------|
| 52.246-2  | Inspection of Supplies-Fixed-Price. | 1996-08 |
| 52.247-34 | F.o.b. Destination.                 | 1991-01 |

#### **DFARS Clauses Incorporated by Reference**

| <b>Number</b> | <b>Title</b>                                                                                                                | <b>Effective Date</b> | <b>Alternate Deviation</b> | <b>Variation Effective Date</b> |
|---------------|-----------------------------------------------------------------------------------------------------------------------------|-----------------------|----------------------------|---------------------------------|
| 252.204-7003  | Control of Government Personnel Work Product.                                                                               | 1992-04               |                            |                                 |
| 252.209-7004  | Subcontracting with Firms that are Owned or Controlled by the Government of a Country that is a State Sponsor of Terrorism. | 2019-05               |                            |                                 |
| 252.211-7008  | Use of Government-Assigned Serial Numbers.                                                                                  | 2010-09               |                            |                                 |
| 252.225-7036  | Buy American-Free Trade Agreements--Balance of Payments Program.                                                            | 2024-02               |                            |                                 |
| 252.225-7048  | Export-Controlled Items.                                                                                                    | 2013-06               |                            |                                 |
| 252.243-7001  | Pricing of Contract Modifications.                                                                                          | 1991-12               |                            |                                 |

#### **FAR Clauses Incorporated by Full Text**

| <b>Number</b> | <b>Title</b> | <b>Effective Date</b> | <b>Alternate Deviation</b> | <b>Variation Effective Date</b> |
|---------------|--------------|-----------------------|----------------------------|---------------------------------|
|---------------|--------------|-----------------------|----------------------------|---------------------------------|

52.246-17      Warranty of Supplies of a      2003-06  
Noncomplex Nature.

Warranty of Supplies of a Noncomplex Nature (June 2003)

(a) *Definitions.* As used in this clause-

*Acceptance* means the act of an authorized representative of the Government by which the Government assumes for itself, or as an agent of another, ownership of existing supplies, or approves specific services as partial or complete performance of the contract.

*Supplies* means the end items furnished by the Contractor and related services required under this contract. The word does not include "data."

(b) Contractor's obligations.

(1) Notwithstanding inspection and acceptance by the Government of supplies furnished under this contract, or any condition of this contract concerning the conclusiveness thereof, the Contractor warrants that for \_\_\_\_ [Contracting Officer shall state specific period of time after delivery, or the specified event whose occurrence will terminate the warranty period; e.g., the number of miles or hours of use, or combinations of any applicable events or periods of time]-

(i) All supplies furnished under this contract will be free from defects in material or workmanship and will conform with all requirements of this contract; and

(ii) The preservation, packaging, packing, and marking, and the preparation for, and method of, shipment of such supplies will conform with the requirements of this contract.

(2) When return, correction, or replacement is required, transportation charges and responsibility for the supplies while in transit shall be borne by the Contractor. However, the Contractor's liability for the transportation charges shall not exceed an amount equal to the cost of transportation by the usual commercial method of shipment between the place of delivery specified in this contract and the Contractor's plant, and return.

(3) Any supplies or parts thereof, corrected or furnished in replacement under this clause, shall also be subject to the terms of this clause to the same extent as supplies initially delivered. The warranty, with respect to supplies or parts thereof, shall be equal in duration to that in paragraph (b)(1) of this clause and shall run from the date of delivery of the corrected or replaced supplies.

(4) All implied warranties of merchantability and "fitness for a particular purpose" are excluded from any obligation contained in this contract.

(c) Remedies available to the Government.

(1) The Contracting Officer shall give written notice to the Contractor of any breach of warranties in paragraph (b)(1) of this clause within 45 days after discovery of the defect.

(2) Within a reasonable time after the notice, the Contracting Officer may either-

(i) Require, by written notice, the prompt correction or replacement of any supplies or parts thereof (including preservation, packaging, packing, and marking) that do not conform with the requirements of this contract within the meaning of paragraph (b)(1) of this clause; or

(ii) Retain such supplies and reduce the contract price by an amount equitable under the circumstances.

(3)

(i) If the contract provides for inspection of supplies by sampling procedures, conformance of supplies or components subject to warranty action shall be determined by the applicable sampling procedures in the contract. The Contracting Officer-

(A) May, for sampling purposes, group any supplies delivered under this contract;

(B) Shall require the size of the sample to be that required by sampling procedures specified in the contract for the quantity of supplies on which warranty action is proposed;

(C) May project warranty sampling results over supplies in the same shipment or other supplies contained in other shipments even though all of such supplies are not present at the point of reinspection; provided, that the supplies remaining are reasonably representative of the quantity on which warranty action is proposed; and

(D) Need not use the same lot size as on original inspection or reconstitute the original inspection lots.

(ii) Within a reasonable time after notice of any breach of the warranties specified in paragraph (b)(1) of this clause, the Contracting Officer may exercise one or more of the following options:

(A) Require an equitable adjustment in the contract price for any group of supplies.

(B) Screen the supplies grouped for warranty action under this clause at the Contractor's expense and return all nonconforming supplies to the Contractor for correction or replacement.

(C) Require the Contractor to screen the supplies at locations designated by the Government within the contiguous United States and to correct or replace all nonconforming supplies.

(D) Return the supplies grouped for warranty action under this clause to the Contractor (irrespective of the f.o.b. point or the point of acceptance) for screening and correction or replacement.

(4)

(i) The Contracting Officer may, by contract or otherwise, correct or replace the nonconforming supplies with similar supplies from another source and charge to the Contractor the cost occasioned to the Government thereby if the Contractor-

(A) Fails to make redelivery of the corrected or replaced supplies within the time established for their return; or

(B) Fails either to accept return of the nonconforming supplies or fails to make progress after their return to correct or replace them so as to endanger performance of the delivery schedule, and in either of these circumstances does not cure such failure within a period of 10 days (or such longer period as the Contracting Officer may authorize in writing) after receipt of notice from the Contracting Officer specifying such failure.

(ii) Instead of correction or replacement by the Government, the Contracting Officer may require an equitable adjustment of the contract price. In addition, if the Contractor fails to furnish timely disposition instructions, the Contracting Officer may dispose of the nonconforming supplies for the Contractor's account in a reasonable manner. The Government is entitled to reimbursement from the Contractor, or from the proceeds of such disposal, for the reasonable expenses of the care and disposition of the nonconforming supplies, as well as for excess costs incurred or to be incurred.

(5) The rights and remedies of the Government provided in this clause are in addition to and do not limit any rights afforded to the Government by any other clause of this contract.

(End of clause)

|          |                         |         |
|----------|-------------------------|---------|
| 52.252-2 | Clauses Incorporated by | 1998-02 |
|          | Reference.              |         |

Clauses Incorporated By Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/browse/index/far>

(End of clause)



52.252-6                      Authorized Deviations in Clauses.                      2020-11

Authorized Deviations in Clauses (Nov 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any Defense Federal Acquisition Regulations Supplement, Department of Defense; (48 CFR Chapter 2) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

## Solicitation Provisions

### FAR Provisions Incorporated by Reference

| Number   | Title                                                                                        | Effective Date | Alternate Deviation | Variation Effective Date |
|----------|----------------------------------------------------------------------------------------------|----------------|---------------------|--------------------------|
| 52.204-7 | System for Award Management-Registration. (Deviation 2026-O0038)                             | 2026-02        |                     |                          |
| 52.212-1 | Instructions to Offerors-Commercial Products and Commercial Services. (Deviation 2026-O0038) | 2026-02        |                     |                          |

### DFARS Provisions Incorporated by Reference

| Number       | Title                                                                | Effective Date | Alternate Deviation | Variation Effective Date |
|--------------|----------------------------------------------------------------------|----------------|---------------------|--------------------------|
| 252.203-7005 | Representation Relating to Compensation of Former DoD Officials.     | 2022-09        |                     |                          |
| 252.204-7008 | Compliance with Safeguarding Covered Defense Information Controls.   | 2016-10        |                     |                          |
| 252.204-7024 | Notice on the Use of the Supplier Performance Risk System.           | 2023-03        |                     |                          |
| 252.225-7055 | Representation Regarding Business Operations with the Maduro Regime. | 2022-05        |                     |                          |

|              |                                                                                                          |         |
|--------------|----------------------------------------------------------------------------------------------------------|---------|
| 252.225-7059 | Prohibition on Certain<br>Procurements from the Xinjiang<br>Uyghur Autonomous Region-<br>Representation. | 2023-06 |
|--------------|----------------------------------------------------------------------------------------------------------|---------|

#### DFARS Provisions Incorporated by Full Text

| Number       | Title                                                                          | Effective<br>Date | Alternate<br>Deviation | Variation<br>Effective<br>Date |
|--------------|--------------------------------------------------------------------------------|-------------------|------------------------|--------------------------------|
| 252.204-7016 | Covered Defense<br>Telecommunications Equipment<br>or Services-Representation. | 2019-12           |                        |                                |

#### COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES- REPRESENTATION (DEC 2019)

(a) Definitions. As used in this provision, "covered defense telecommunications equipment or services" has the meaning provided in the clause 252.204-7018, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.

(b) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered defense telecommunications equipment or services".

(c) Representation. The Offeror represents that it [ ] does, [ ] does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(End of provision)

252.204-7017      Prohibition on the Acquisition of      2021-05  
Covered Defense  
Telecommunications Equipment  
or Services-Representation.

PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS  
EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) *Definitions.* "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) *Prohibition.* Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) *Representation.* If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it will will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) *Disclosures.* If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

252.225-7000 Buy American--Balance of 2024-02  
Payments Program Certificate.

#### BUY AMERICAN-BALANCE OF PAYMENTS PROGRAM CERTIFICATE-BASIC (FEB 2024)

(a) *Definitions.* "Commercially available off-the-shelf (COTS) item," "component," "critical component," "critical item," "domestic end product," "foreign end product," "qualifying country," "qualifying country end product," and "United States," as used in this provision, have the meanings given in the 252.225-7001, Buy American and Balance of Payments Program-Basic clause of this solicitation.

(b) *Evaluation.* The Government-

(1) Will evaluate offers in accordance with the policies and procedures of Part 225 of the Defense Federal Acquisition Regulation Supplement; and

(2) Will evaluate offers of qualifying country end products without regard to the restrictions of the Buy American statute or the Balance of Payments Program.

(c) *Certifications and identification of country of origin.*

(1) For all line items subject to the Buy American and Balance of Payments Program-Basic clause of this solicitation, the Offeror certifies that-

(i) Each end product, except those listed in paragraphs (c)(2) or (3) of this provision, is a domestic end product and that each domestic end product listed in paragraph (c) (4) of this provision contains a critical component or a critical item; and

(ii) For end products other than COTS items, components of unknown origin are considered to have been mined, produced, or manufactured outside the United States or a qualifying country. For those end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

(2) The Offeror certifies that the following end products are qualifying country end products:

| Line Item Number | Country of Origin |
|------------------|-------------------|
| _____            | _____             |
| _____            | _____             |
| _____            | _____             |

(3) The following end products are other foreign end products, including end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

| Line Item Number | Country of Origin (If known) | Exceeds 55% Domestic Content (yes/no) |
|------------------|------------------------------|---------------------------------------|
| _____            | _____                        | _____                                 |
| _____            | _____                        | _____                                 |
| _____            | _____                        | _____                                 |

(4) The Offeror shall separately list the line item numbers of domestic end products that contain a critical component or a critical item (see Federal Acquisition Regulation 25.105).

Domestic end products containing a critical component or a critical item:

Line Item Number \_\_\_\_\_

*[List as necessary]*

(End of provision)

## Addendum to Solicitation Provisions

### FAR Provisions Incorporated by Reference

| Number    | Title                                                                                                                           | Effective Date | Alternate Deviation | Variation Effective Date |
|-----------|---------------------------------------------------------------------------------------------------------------------------------|----------------|---------------------|--------------------------|
| 52.203-18 | Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation. | 2017-01        |                     |                          |
| 52.214-34 | Submission of Offers in the English Language.                                                                                   | 1991-04        |                     |                          |
| 52.214-35 | Submission of Offers in U.S. Currency.                                                                                          | 1991-04        |                     |                          |
| 52.215-20 | Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data. (Deviation 2026-O0038)      | 2026-02        |                     |                          |
| 52.240-90 | Security Prohibitions and Exclusions Representations and Certifications. (Deviation 2026-O0038)                                 | 2026-02        |                     |                          |

### DFARS Provisions Incorporated by Reference

| Number       | Title                        | Effective Date | Alternate Deviation | Variation Effective Date |
|--------------|------------------------------|----------------|---------------------|--------------------------|
| 252.206-7000 | Domestic Source Restriction. | 2023-08        |                     |                          |



## FAR Provisions Incorporated by Full Text

| Number    | Title                                                                                                                                     | Effective Date | Alternate Deviation | Variation Effective Date |
|-----------|-------------------------------------------------------------------------------------------------------------------------------------------|----------------|---------------------|--------------------------|
| 52.209-11 | Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law.<br>(Deviation 2026-O0038) | 2026-02        |                     |                          |

Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law (Feb 2026) (Deviation 2026-O0038)

(a) The Government will not enter into a contract with any corporation that-

(1) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(2) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(b) The Offeror represents that-

(1) It is is not a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(2) It is is not a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(End of provision)

|          |                                          |         |
|----------|------------------------------------------|---------|
| 52.216-1 | Type of Contract. (Deviation 2026-O0038) | 2026-02 |
|----------|------------------------------------------|---------|

Type of Contract (Feb 2026) (Deviation 2026-O0038)

The Government contemplates award of a Firm Fixed Price contract resulting from this solicitation.

(End of provision)

|          |                                                                                          |         |
|----------|------------------------------------------------------------------------------------------|---------|
| 52.225-4 | Buy American-Free Trade Agreements-Israeli Trade Act Certificate. (Deviation 2026-O0038) | 2026-02 |
|----------|------------------------------------------------------------------------------------------|---------|

Buy American-Free Trade Agreements-Israeli Trade Act Certificate (Feb 2026) (Deviation 2026-O0038)

(a)

(1) The Offeror certifies that each end product, except those listed in paragraph (b) or (c)(1) of this provision, is a domestic end product and that each domestic end product listed in paragraph (c)(2) of this provision contains a critical component.

(2) The terms "Bahraini, Moroccan, Omani, Panamanian, or Peruvian end product," "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," "foreign end product," "Free Trade Agreement country," "Free Trade Agreement country end product," "Israeli end product," and "United States" are defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

(b) The Offeror certifies that the following supplies are Free Trade Agreement country end products (other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian end products) or Israeli end products as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act":

Free Trade Agreement Country End Products (Other than Bahraini, Moroccan, Omani,

Panamanian, or Peruvian End Products) or Israeli End Products:

| Line item No. | Country of origin |
|---------------|-------------------|
| _____         | _____             |
| _____         | _____             |
| _____         | _____             |

[List as necessary]

(c)

(1) The Offeror shall list those supplies that are foreign end products (other than those listed in paragraph (b) of this provision) as defined in the clause of this solicitation entitled "Buy American-Free Trade Agreements-Israeli Trade Act."

Other Foreign End Products:

| Line Item No. | Country of origin |
|---------------|-------------------|
| _____         | _____             |
| _____         | _____             |
| _____         | _____             |

[List as necessary]

(2) The Offeror shall list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

Line Item No. \_\_\_\_\_

[List as necessary]

(d) The Government will evaluate offers in accordance with the policies and procedures of part 25 of the Federal Acquisition Regulation.

(End of provision)

52.229-11      Tax on Certain Foreign      2020-06  
Procurements-Notice and  
Representation.

Tax on Certain Foreign Procurements-Notice and Representation (Jun 2020)

(a) *Definitions.* As used in this provision-

*Foreign person* means any person other than a United States person.

*Specified Federal procurement payment* means any payment made pursuant to a contract with a foreign contracting party that is for goods, manufactured or produced, or services provided in a foreign country that is not a party to an international procurement agreement with the United States. For purposes of the prior sentence, a foreign country does not include an outlying area of the United States.

*United States person* as defined in 26 U.S.C. 7701(a)(30) means

- (1) A citizen or resident of the United States;
  - (2) A domestic partnership;
  - (3) A domestic corporation;
  - (4) Any estate (other than a foreign estate, within the meaning of 26 U.S.C. 701(a)(31)); and
  - (5) Any trust if-
    - (i) A court within the United States is able to exercise primary supervision over the administration of the trust; and
    - (ii) One or more United States persons have the authority to control all substantial decisions of the trust.
- (b) Unless exempted, there is a 2 percent tax of the amount of a specified Federal procurement payment on any foreign person receiving such payment. See 26 U.S.C. 5000C and its implementing regulations at 26 CFR 1.5000C-1 through 1.5000C-7.
- (c) Exemptions from withholding under this provision are described at 26 CFR 1.5000C-1(d)(5) through (7). The Offeror may claim an exemption from the withholding by using the Department of the Treasury Internal Revenue Service (IRS) Form W-14, Certificate of Foreign Contracting Party Receiving Federal Procurement Payments, available at [www.irs.gov/w14](http://www.irs.gov/w14). Any exemption claimed and self-certified on the IRS Form W-14 is subject to audit by the IRS. Any disputes regarding the imposition and collection of the 26 U.S.C. 5000C tax are adjudicated by the IRS

as the 26 U.S.C. 5000C tax is a tax matter, not a contract issue. The IRS Form W-14 is provided to the acquiring agency rather than to the IRS.

(d) For purposes of withholding under 26 U.S.C. 5000C, the Offeror represents that

(1) It is is not a foreign person; and

(2) If the Offeror indicates "is" in paragraph (d)(1) of this provision, then the Offeror represents that-I am claiming on the IRS Form W-14 a full exemption, or partial or no exemption [*Offeror must select one*] from the excise tax.

(e) If the Offeror represents it is a foreign person in paragraph (d)(1) of this provision, then-

(1) The clause at FAR 52.229-12, Tax on Certain Foreign Procurements, will be included in any resulting contract; and

(2) The Offeror shall submit with its offer the IRS Form W-14. If the IRS Form W-14 is not submitted with the offer, exemptions will not be applied to any resulting contract and the Government will withhold a full 2 percent of each payment.

(f) If the Offeror selects "is" in paragraph (d)(1) and "partial or no exemption" in paragraph (d)(2) of this provision, the Offeror will be subject to withholding in accordance with the clause at FAR 52.229-12, Tax on Certain Foreign Procurements, in any resulting contract.

(g) A taxpayer may, for a fee, seek advice from the IRS as to the proper tax treatment of a transaction. This is called a private letter ruling. Also, the IRS may publish a revenue ruling, which is an official interpretation by the IRS of the Internal Revenue Code, related statutes, tax treaties, and regulations. A revenue ruling is the conclusion of the IRS on how the law is applied to a specific set of facts. For questions relating to the interpretation of the IRS regulations go to <https://www.irs.gov/help/tax-law-questions>.

(End of provision)

|          |                            |         |
|----------|----------------------------|---------|
| 52.252-1 | Solicitation Provisions    | 1998-02 |
|          | Incorporated by Reference. |         |

Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting

the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/browse/index/far>

(End of provision)

|          |                                      |         |
|----------|--------------------------------------|---------|
| 52.252-5 | Authorized Deviations in Provisions. | 2020-11 |
|----------|--------------------------------------|---------|

Authorized Deviations in Provisions (Nov 2020)

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any Defense Federal Acquisition Regulations Supplement, Department of Defense; (48 CFR Chapter 2) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

#### DFARS Provisions Incorporated by Full Text

| Number       | Title                                                                                                                              | Effective Date | Alternate Deviation | Variation Effective Date |
|--------------|------------------------------------------------------------------------------------------------------------------------------------|----------------|---------------------|--------------------------|
| 252.211-7002 | Availability for Examination of Specifications, Standards, Plans, Drawings, Data Item Descriptions, and Other Pertinent Documents. | 1991-12        |                     |                          |

AVAILABILITY FOR EXAMINATION OF SPECIFICATIONS, STANDARDS, PLANS,  
DRAWINGS, DATA ITEM DESCRIPTIONS, AND OTHER PERTINENT DOCUMENTS (DEC  
1991)

The specifications, standards, plans, drawings, data item descriptions, and other pertinent documents cited in this solicitation are not available for distribution but may be examined at the following location:

[www.sam.gov](http://www.sam.gov)

(End of provision)